ART FOI 2026/1839 — Breach Register & FIRA Analysis

Oct 10, 2026 · @vida · Privileged & confidential — prepared for legal advice

Urgent actions

The OAIC review window for the FOI decision closes about Oct 13, 2026 (60 days from the 14 Aug 2026 notice, FOI Act s54S). Lodge it first; everything else can follow.

#	Action	Deadline	Why
1	Lodge an Information Commissioner (OAIC) review of FOI 2026/1839 (online form + copy of the decision)	Oct 13, 2026	Internal review window (30 days) has lapsed. OAIC review is the only route to docs 9 and 10 and to unredacted staff names. If you received the notice later than 14 Aug, the 60 days run from receipt; OAIC can also extend time (s54T).
2	Write to the Commissioner asking her to revoke or vary Vida's banning order	ASAP	The internal review (T1.1 para 63, PDF p33) tied the ban to the criminal case and promised it "can be revisited" once that case ended. The CDPP withdrew the charges in Feb 2024. No revisit appears anywhere.
3	Apply to the ART to vacate the 12 Sep 2023 s37(1AE) order (343-page bundle)	ASAP	Its stated basis was "current criminal proceedings", which ended in Feb 2024.
4	Obtain the CDPP notice of discontinuance and the Magistrates Court record (23 Feb 2024)	Before next ART listing	Primary proof that the charges were withdrawn. The FOI set records it only second-hand.

#	Action	Deadline	Why
5	Calendar and track the privacy complaint against the Commission (OAIC, Privacy Act)	Now	The Tribunal declined it on 6 Jun 2025. The 12-month window from Feb 2025 has passed, but lateness is only a discretionary ground for OAIC to decline (Privacy Act s41(1)(c), verify), so file with reasons for the delay.

Note: You withdrew only the *interlocutory* stay application on 9 Mar 2026, not the review itself (doc 3 p124). Your review 2023/3361 remains on foot.

Bottom line

The FOI release confirms you were right: there were real breaches, and several were never addressed. The single strongest point for the ART is that **the factual foundation of Vida's ban has collapsed**: the internal review expressly sized the ban to the criminal case, and that case was withdrawn by the CDPP in Feb 2024.

The release (15 documents, about 1,930 pages, all read, scanned pages OCR'd) supports five lines of attack:

1. **Foundation gone.** The ban term (to 21 Dec 2027) "corresponds with the amount of time it is reasonably expected to take for the criminal proceedings to be finally determined" (doc 11, PDF p33, para 63). Those proceedings ended in Feb 2024 (doc 2 p74). On merits review the ART decides on the facts as they stand now.
2. **Pre-determination and bias in the Commission's own brief.** The Executive Brief says the Commission "should be prepared for a retaliatory response" after Vida met Federal Ministers, and that inaction "may reflect poorly on the Commission" (doc 11 pp166, 186). The same brief describes the complaints as "administrative and personal errors" (p166).
3. **An intelligence-led, coordinated case.** The NDIA "Project Archer" report (18 Aug 2022), Commission requests for AFP criminal histories (23 Aug 2022) and witness statements captioned "R v Vida Reid" from 11 Oct 2022, eight days before the charge. The Archer report itself is still withheld.
4. **Disclosure failures, some admitted.** AGS admitted in writing that documents were "inadvertently omitted" and "should have been provided previously" (May 2026), and that the first bundle held 3 documents "confidential to another criminal investigation" (Aug 2023). 343 pages remain withheld on a criminal-proceedings ground that no longer exists.

5. **Tribunal process failures.** The privacy breach (the Commission sent your confidential stay affidavit to Simon's solicitor) was set aside as not for the Tribunal; there are no file notes for 13 Feb 2025 or 6 Jun 2025 hearings; 402 days with no entries on 3361; and FFG's review (2023/4494) was never separately listed or heard before its ban expired.

Effect on the broader ART case: points 1 and 2 go to the merits (the correct or preferable decision now). Points 3 and 4 support applications to lift the confidentiality orders and to compel full s37 disclosure. Point 5 is mainly evidence for complaints and compensation, and context for any future appeal on procedural fairness. The compensation avenues are in section 7.

Document index

The ART identified 15 documents. 13 were released (2 in full, 11 redacted), and 2 were refused under s46 (Tribunal orders). The released files are numbered 1–8 and 11–15; documents 9 and 10 are the withheld ones.

Doc	Pages	Content (from reading)	Access	Key value
1	53	Respondent (AGS) submissions: Sep 2023 confidentiality outline; Nov 2023–Feb 2024 stay submissions; Sep 2025 submissions opposing Vida's stay and severance	Released (s22 deletions)	Sep 2025: charges "dropped"; privacy breach admitted as the Commission's act; "no current criminal investigation"
2	167	Documents received by the Tribunal for 3361, mostly AGS emails	Released with exemptions	AGS: 3 documents "confidential to another criminal investigation" (p43); charges withdrawn (p74); 7 May 2026 omissions admission (pp142–143)
3	127	Tribunal's emails to the respondent, 3361	Released with exemptions	Listing notices; privacy-breach directions hearing (p112–113); 9 Mar 2026 withdrawal of interlocutory application only (p124)

Doc	Pages	Content (from reading)	Access	Key value
4	129	Tribunal file notes and internal emails, 3361	Released with exemptions	Hearing transcripts-notes 19 Jul 2023 and 12 Sep 2023; constitution memo; DP's May 2026 notes; record gaps
5	2	Respondent submissions, 4494	Released (URL deleted)	Minimal
6	31	Received documents, 4494	Released with exemptions	FFG file activity
7	91	Tribunal's emails to respondent, 4494	Released with exemptions	Shows FFG matter never separately progressed
8	31	File notes, 4494	Released with exemptions	No entries 4 Nov 2024–24 May 2026 (566 days)
9	**15**	**Tactical Intelligence Report – Project Archer (18 Aug 2022)**	**Refused, s46** (order 26 Jul 2024)	The origin document of the case; never seen by you
10	**343**	**Index – Confidential Tribunal Documents**	**Refused, s46** (order 12 Sep 2023)	Withheld for "current criminal proceedings and/or LPP"
11	1,162	T-documents, 3361: decisions, Executive Brief, evidence matrix, witness statements, SoMF, complaints	Released in full	Core evidence of pre-determination and coordination
12	103	T-documents, 4494	Released in full	FFG decisions; relied-on evidence missing from FFG bundle
13	3	Constitution report (27 Sep 2024)	Redacted	Directions hearing 3 Oct 2024
14	4	Listings report	Deletions	Only 3361 listed: 6 Jun 2025 and 20 Mar 2026
15	17	National listings team memo and directions	Redacted	Memo "as at 1 Oct 2024" still treats the charges as live; memo starts at "Page 2 of 4" (page 1 missing)

FOI decision anomalies (relevant to the OAIC review): the reasons apply s42 (legal professional privilege) to parts of doc 2, but the Schedule lists no s42 exemption for any document, and no s42 redaction appears in doc 2. Staff surnames are withheld under a blanket HR policy (s47E(c)), which the FOI Guidelines treat as insufficient on its own.

Timeline

The chronology shows an intelligence and criminal track running two months ahead of any notice to Vida, and a review that stalled for three years on a criminal case that ended in Feb 2024. It is set out oldest first, as a court chronology would be.

Date	Event	Source
12 Aug 2022	NDIA officer (who also handled Vida's and her son's participant plans) sends fraud tip, with political commentary, to NDIA Fraud Intelligence; forwarded to Commission the same day	Doc 11 pp449–451
18 Aug 2022	NDIA "Tactical Intelligence Report – Project Archer"	Doc 11 p168 (listed as Att 5, absent); FOI doc 9 (withheld)
23–25 Aug 2022	Commission asks AFP for criminal histories of Vida and Simon; WA Police compile them "Requested by: AFP"	Doc 11 pp227, 485–492
11–15 Oct 2022	NDIA investigators take witness statements captioned "R v Vida Reid"; one (12 Oct) captioned "R v Project ARCHER"	Doc 11 pp524, 637 and others
19 Oct 2022	Vida arrested and charged (Criminal Code ss135.1(3), 400.9(1)); FFG registration suspended	Doc 15 p3; doc 12
15 Nov 2022	Notice of intention to ban; final gives 14 days to 30 Nov (drafts had 28 days to 14 Dec)	Doc 11 (A3 review, T49–T53)
30 Nov 2022	Tom & Co submissions for Vida, Simon, FFG	Doc 11

Date	Event	Source
20 Dec 2022	FFG registration revoked; banning orders against FFG (10 yrs), Vida, Simon	Doc 15 p2; doc 11
21 Apr 2023	Internal review: Vida's ban re-based on s73ZN(2)(a)(iii), term to 21 Dec 2027 tied to the criminal case	Doc 11 pp32–33
10 May 2023	ART (then AAT) applications 2023/3361 (Vida) and 2023/3363 (Simon) lodged	Doc 4 p76
8 Jun 2023	FFG internal review: 10-yr ban cut to 3 yrs, tied to the criminal case	Doc 15 p2; doc 12
26 Jun 2023	FFG application 2023/4494 lodged	Doc 4
19 Jul 2023	Interlocutory hearing: DP says the respondent "doesn't seem to have attended to its responsibilities"; T-docs extended to 7 Aug	Doc 4
8–10 Aug 2023	T-docs filed; AGS then admits 3 documents "confidential to another criminal investigation" were included	Doc 2 p43
12 Sep 2023	s35 non-publication and s37(1AE) non-disclosure order over 343-page bundle, "by reason of current criminal proceedings and/or LPP"; made pending applicants' submissions due 26 Sep	Doc 4 (hearing note)
17 Jan 2024	Vida and FFG matters adjourned pending the criminal proceedings	Doc 15 p1
23 Feb 2024	CDPP withdraws all charges at mention	Doc 2 p74; doc 2 p134 (Simon Reid: "for no evidence")
28 Feb 2024	Respondent still filing stay submissions about "possible criminal proceedings"	Doc 15 p1; doc 1 pp29–30
7 Mar 2024	AGS tells Tribunal charges withdrawn; withdraws stay only for Simon's matter	Doc 2 p74

Date	Event	Source
21 Jun–26 Jul 2024	New confidentiality order over Project Archer report, on a new ground: "could prejudice future investigations". No record Vida was heard	Doc 15; FOI notice
19 Sep 2024	Matter reconstituted to DP McMillan (Brisbane); memo misnames respondent "NDIA" and FFG "Fast Forward Group"	Doc 4
14 Oct 2024	ART replaces AAT; matters transfer	Doc 2
28 Jan 2025	Commission sends Vida's confidential stay affidavit and submissions to Simon's solicitor	Doc 1 p33 para 16
4 Feb 2025	Vida complains of breach of confidentiality	Doc 1 p34 para 17
13 Feb 2025	Hearing adjourned to consider the complaint; Vida had not received the hearing link; no file note	Doc 1 p34; doc 4
6 Jun 2025	Tribunal says the complaint is not a matter it can determine; orders Vida to serve her material on all parties	Doc 1 pp34, 41 para 50
17 Sep 2025	Respondent submissions: charges "dropped"; "no current criminal investigation"	Doc 1 pp31–43
21 Dec 2025	FFG 3-year ban expires, never heard on the merits	Doc 12 (inferred from term)
9 Mar 2026	Vida withdraws her interlocutory stay application (review continues)	Doc 3 p124
19–20 Mar 2026	Severance hearing vacated by Tribunal	Doc 2
7 May 2026	AGS admits five categories of documents were omitted and "should have been provided previously"; files s70 non-disclosure application	Doc 4; doc 2 pp142–143
18 Jul 2026	FOI request lodged	FOI notice

Date	Event	Source
14 Aug 2026	FOI decision	FOI notice